

9:00 AM

Line 2

24-CIV-00269 HAMID KHAZAELI VS. DAVID A BREWER, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Plaintiff's Motion to Compel (*mis-captioned by Plaintiff as*) Further Responses to Plaintiff's Request for Production of Documents, Set No. One (*but substantively it is to Compel on Form Interrogatories, Set No. One, Special Interrogatories, Set No. One, and Requests for Admissions, Set No. One*)

TENTATIVE RULING:

Plaintiff Hamid Khazaeli's Motion to Compel Further Responses from David A. Brewer, Former NT Corporation, Notify Technology Corporation, Paul F. Depond, Robert Polychron (collectively "defendants") filed August 26, 2025, is DENIED in entirety.

Sanctions in the amount of \$3,150.00 are GRANTED to defendants as prevailing party to the motion. (Code Civ. Proc., §§ 2023.010, 2023.030, subd. (a), 2030.300, subd. (d) & 2033.290 subd. (d).)

Initially, the Court notes that Plaintiff's original and/or amended Notice of Motion, stated that the instant matter was set before a prior assigned Judge. However, effective April 13, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable Michael L. Mau, Department 20, now located at 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the required Amended Notice "must specify" the location of the hearing].)

The Court notes the notice of motion is mis-captioned as a "Motion to Compel Further Responses to its Request for Production of Documents, Set No. One" because the motion is made pursuant to Code of Civil Procedure sections 2033.290 [motion to compel further response to requests for admission]; 2030.300 [motion to compel further response to interrogatories], and 2030.220 [form of answers in response] and seeks responses to "Plaintiff's Form Interrogatories General, Set No. One, Nos. 2.6 and 2.11 from DEPOND and POLYCHRON, Nos. 4.1, 12.1, 12.2, and 15.1 from Defendants; Plaintiff's Special Interrogatories, Set No. One, Nos. 1-3 from BREWER, FNTC, NTC, DEPOND, and POLYCHRON; Plaintiff's Requests for Admissions, Set No. One, Nos. 1, 3-11 from BREWER, Nos. 1-11 from FNTC, Nos. 1, 3-11 from DEPOND, Nos. 1, 3-11 from POLYCHRON; and issue of DocuSign signatures." (NOMM filed August 26, 2025, pp.1-2.) Plaintiff is reminded to properly caption and title its pleadings correctly.

A. Background

The underlying action for FEHA-based discrimination and retaliation arises from plaintiff's former employment with Notify Technology Corporation from 2006 to 2012 as enterprise sales manager. (FAC ¶9.) The named defendants include three individual non-employers— Michael Ballard, Siu Po Lee and

Sandra Basel — who testified for the defense at a 2020 in one of plaintiff’s former lawsuits regarding his employment tenure. (FAC ¶ 15.) Plaintiff seeks damages in excess of \$60,000,000. (FAC ¶31.) Because this matter has an extensive procedural history of which the parties are well-versed the Court does not repeat it here.

The instant motion was initially set for hearing on November 17, 2025 and later continued by a prior assigned department to the latest date of January 11, 2027, but on May 22, 2026, this Court *sua sponte* advanced the hearing date. The Court notes that when this case was assigned to Dept. 20 which assignment was effective on April 13, 2026, there were approximately twenty-five (25) discovery and other motions already filed, and that plaintiff himself asked this Court to advance motions that were already fully briefed, including this same motion, to an earlier date.

Relevantly, on or around October 9, 2024, plaintiff asserts having served his Form Interrogatories, Set No. One (“FI”), Special Interrogatories, Set No. One (“SI”) and Requests for Admissions, Set No. One (“RFA”) on defendants. (Declaration of Hamid Khazaeli iso motion to compel filed August 26, 2025, ¶ 3, exhibits 1-3.) On or around January 27, 2025, defendants served plaintiff with their discovery responses. (Khazaeli Decl. ¶¶4, exhibits 4-6.)

Plaintiff brings the instant motion contending that the responses are evasive, incomplete, nonresponsive, not code-compliant and lacking a privilege log. Plaintiff requests total sanctions of \$2,000 for abuse of the discovery process under Code of Civil Procedure sections 2023.030, 2024.040, 2023.050, 2030.300, including more severe sanctions such as entering judgment against defendants, as the Court sees appropriate. (MPA p.7.)

Defendants oppose the motion on several grounds. First, defendants contend that plaintiff’s motion should be denied because plaintiff impermissibly combined three distinct discovery motions (Form Interrogatories, Special Interrogatories, and Requests for Admission) into one omnibus filing. Defendants argue they are prejudiced because they are required to brief and argue three separate discovery disputes within the constraints of a single motion slot and limited hearing time which amounts to procedural gamesmanship that burdens the Court and opposing counsel. Defendants further contend their responses were legally compliant and reflect a good faith effort to provide substantive information while preserving appropriate objections. Lastly, the breadth of the meet-and-confer record – contained in Plaintiff’s own declaration and exhibits—belies plaintiff’s assertion that defense counsel refused to engage in good faith efforts to resolve the discovery dispute informally. Defendants request \$3,150.00 in sanctions for misuse of discovery process.

B. *Legal Standard*

“[T]he discovery statutes vest a wide discretion on the trial court in granting or denying discovery.” (*Greyhound Corp. v. Superior Court In and For Merced County* (1961) 56 Cal.2d 355, 378 [superseded by statute].) “ ‘The standard of review generally applicable to review of discovery orders is abuse of discretion, as management of discovery lies within the sound discretion of the trial court. [Citations.]’ [Citation.]” (*Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, 198.)” (*Manuel v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 719, 727.)

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of

admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

Regarding written interrogatories, Code of Civil Procedure, section 2030.010 provides, “(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by propounding to any other party to the action written interrogatories to be answered under oath. (b) An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial.”

A party may respond to interrogatories, in writing and under oath, by (1) providing an answer containing the information sought, (2) exercising the option to produce writings, or (3) by objecting to the particular interrogatory. (Code Civ. Proc., § 2030.210 subd. (a).) Code of Civil Procedure section 2030.220 provides that, “(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.”

The form and content of a request for admission is set forth in Code of Civil Procedure section 2033.060. Upon receipt of a response to a request for admission, a party may move for an order compelling a further response if party deems the response provided evasive, incomplete. (Code Civ. Proc. § 2033.290, subd. (a)(1).)

Once a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220-221 [regarding interrogatories specifically].) To do so, the responding party must affirmatively show that the burden of responding would be so great, and the benefit of the information sought would be so minimal, that it would defeat the ends of justice to require the party to answer. (*Columbia Broadcasting System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19.)

Trial courts possess broad discretion to manage discovery and to limit discovery that is unreasonably cumulative, overbroad, or disproportionate. (*Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 380; *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.)

C. Discussion

Plaintiff contends defendants’ discovery responses at issue violate relevant statutes because the responses are evasive, incomplete to completely missing, assert boilerplate objections, and fail provide a privilege log. Plaintiff also contests the validity of DocuSign signatures. Upon review of both parties excessively long separate statements (113 pages in plaintiff’s, 134 pages in defendants’) the Court rules as follows:

Form Interrogatories

Form Interrogatory 2.6 to Paul Depond and Robert Polychron:

State:

- (a) the name, ADDRESS, and telephone number of your present employer or place of self employment; and
- (b) the name, ADDRESS, dates of employment, job title, and nature of work for each employer or self-employment you have had from five years before the INCIDENT until today.

Defendant Depond's response: Not applicable.

Defendant Depond's Amended Response:

- (a) None.
- (b) CEO, Notify Technology Company, 888 Boardman-Canfield Road Suite C, Boardman OH 44512 (November 2016 to the present); VP of Business Development, Globo Mobile Technologies, Inc., 1054 S. De Anza Blvd., Suite 105, Santa Clara, CA 95129 (no longer in business, no address)

Defendant Polychron's response: (a) Self-employed at 2.5 a). 914-391-0777

(b) N/A

Basis for motion to compel: the interrogatory is asking for specific information (i.e., facts, present and past employment, job title, address, tel no., nature of the work, self-employment, etc.) and not a compilation. "Not applicable" is incomplete, non-responsive, evasive and non-code compliant. (PSS pp.3-5.)

Defendant Polychron's Response to Motion:

The motion should be denied as moot as to this Form Interrogatory because Mr. Polychron served an amended response. (See Declaration of John Claassen filed March 3, 2026, Ex. B.)

RULING: DENY. Defendants have made a reasonable and good faith effort to provide the responsive information within the scope of the interrogatory. Additionally, the Court notes an amended response was served on March 3, 2026.

Form Interrogatory 2.11 to Paul Depond and Robert Polychron:

At the time of the INCIDENT were you acting as an agent or employee for any PERSON? I so, state: (a) the name, ADDRESS, and telephone number of that PERSON; and (b) a description of your duties.

Defendants' Response: No.

Basis for Motion: The interrogatory is asking for specific information about employment. "No." is incomplete, non-responsive, evasive and non-code compliant response.

Defendants' Response to Motion: Because the truthful answer to the threshold question is no, there is no additional information to provide.

RULING: DENY. The answer is complete.

Form Interrogatory 4.1

At the time of the INCIDENT, was there in effect any policy of insurance through which you were or might be insured in any manner (for example, primary, pro-rata, or excess liability coverage or medical expense coverage) for the damages, claims or actions that have arisen out of the INCIDENT?...

Defendants' Response: No.

Basis for Motion to Compel: The interrogatory is asking for specific information about insurance coverage. "No." is incomplete, non-responsive, evasive and non code compliant response.

Defendants' Response to Motion: That answer is complete and fully responsive to the question asked.

RULING: DENY. The answer is complete.

Form Interrogatory 12.1

State the name, ADDRESS, and telephone number of each individual: (a) who witnessed the INCIDENT or the events occurring immediately before or after the INCIDENT; (b) who made any statement at the scene of the INCIDENT; (c) who heard any statements made about the INCIDENT by any individual at the scene, and (d) who YOU OR ANYONE ACTING ON YOUR BEHALF CLAIM HAS KNOWLEDGE OF THE INCIDENT (except for expert witnesses covered by Code of Civil Procedure section 2034).

Defendants' Response: (a) Paul Depond, David A. Brewer, Robert Polychron, all in care of Claassen Law Corp, 1990 N. California Blvd., 8th Floor, Walnut Creek, CA 94596, 925-204-3885; Hamid Khazaeli (contact information known to Hamid Khazaeli); (b) unknown; (c) none; (d) none.

Basis for Motion to Compel: The interrogatory is asking for specific information about witnesses. "No." is incomplete, non-responsive, evasive and non-code compliant response. Responding parties were obligated to disclose all of their witness, but failed. For example, there are at least six or seven known fact character witnesses only for BREWER and FNTC that were not disclosed. Similarly, there are additional witnesses for other defendants. They all must be disclosed.

Defendants' Response to Motion: Defendants made a reasonable inquiry and disclosed the individuals known to them who fall within the defined categories.

RULING: DENY. Speculation regarding potential witnesses does not demonstrate defendants' did not answer the interrogatory fully.

Form Interrogatory 12.2

Have YOU OR ANYONE ACTING ON YOUR BEHALF interviewed any individual concerning the INCIDENT? If so, for each individual state: (a) the name, ADDRESS, and telephone number of the individual interviewed; (b) the date of the interview; and (c) the name, ADDRESS, and telephone number of the PERSON who conducted the interview.

Defendants' Response: Responding Party objects to this interrogatory on the grounds that, to the extent it seeks information about who the Responding Party's attorney has chosen to interview, it seeks the disclosure of an attorney's thoughts and impressions regarding which allegations are material and which allegations are not. Such information is protected by the attorney work product privilege and work product privilege. Responding Party also objects to this interrogatory to the extent it seeks the disclosure of any other information or communications that are protected by the attorney-client privilege or attorney work product privilege. Subject to and without waiver of the foregoing objections, Responding Party responds as follows: no.

Basis for Motion to Compel: Defendants failed to produce a privilege log and the required sufficient factual information.

Defendants' Response to Motion: Subject to and without waiving those objections, Defendants responded that there are no responsive interviews to disclose. That is a complete and straightforward answer based on reasonable inquiry.

RULING: DENY. The answer is complete, and a privilege log is not necessary because there is no information to disclose.

Form Interrogatory 15.1

Identify each denial of a material allegation and each special or affirmative defense in your pleadings, and for each: (a) state all facts on which you base the denial or special or affirmative defense; (b) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and (c) identify all DOCUMENTS and other tangible things that support your denial or special or affirmative defense, and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT.

Defendants' Response: Responding Party objects to this interrogatory on the grounds that it seeks the disclosure of an attorney's thoughts and impressions regarding which allegations are material and which allegations are not.

Basis for Motion to Compel: The (amended) response is incomplete, non-responsive, evasive and non-code compliant.

Defendants' Response to Motion: While objections were asserted and preserved, Defendants also provided a substantive amended response identifying the factual bases for their denials and affirmative defenses, identifying persons with knowledge, and identifying supporting documents. Plaintiff's demand for a privilege log is also misplaced in this context. This interrogatory does not request the production of specific documents; it seeks identification of documents supporting defenses. Defendants identified responsive documents. To the extent certain categories of information may implicate privacy or confidential business concerns, Defendants appropriately noted that such information would be produced subject to authorization or protective order. That is consistent with California law recognizing that privacy rights are qualified and may require balancing, not wholesale disclosure without safeguards. There are no withheld documents being described in conclusory fashion without identification. Finally, Plaintiff's repeated references to burden, search terms, and electronic storage do not alter the analysis. Form Interrogatory 15.1 is not a demand for a document search; it is a contention interrogatory. Defendants conducted a reasonable inquiry and provided the facts, persons, documents known.

RULING: DENY. Defendants provided an amended response identifying the factual bases for their denials and affirmative defenses, identifying persons with knowledge, and identifying supporting documents.

Special Interrogatories

Special Interrogatory No.1

Provide CONTACT INFORMATION for Michael Ballard. (For purposes of this interrogatory and each subsequent interrogatory in which the term appears, "CONTACT INFORMATION" means physical address of residence, separate mailing address if any, email address, and telephone number.

Special Interrogatory No. 2

Provide CONTACT INFORMATION for Siu Po Lee.

Special Interrogatory No. 3

Provide CONTACT INFORMATION for Sandra Basel.

The Court addresses the three special interrogatories altogether because the responses and basis for the motion are the same.

Defendants' Response: Responding Party objects to this Special Interrogatory on the grounds that it seeks the disclosure of personal information of third parties that is not relevant to this Action and is not likely to lead to the disclosure of admissible evidence.

Basis for Motion to Compel: The interrogatory seeks the personal contact information of a non-party who testified in the 2020 trial, and related interrogatories seek the same information for other individuals who likewise testified in that prior action.

Defendants' Response to Motion: The request is too broad and lacks relevance because the underlying action is limited to two FEHA claims for discrimination and retaliation. It is not an appeal or retrial of the 2020 matter, which was for fraudulent conveyance. The Court has already granted a special motion to strike as to allegations concerning purportedly false testimony in that proceeding. Those allegations were determined to be legally deficient and were removed from the case. As a result, the 2020 testimony itself is no longer an operative issue in this action, and discovery aimed at revisiting it is not relevant.

RULING: DENY. Overbroad and lacking relevance.

Requests for Admission

As with the special interrogatories, because the same objections and arguments have been made with respect to each defendant for whom the request for admission is directed, the Court rules on all requests in unison.

No. 1: Admit that defendant David A. Brewer has been joint employer.

Defense Objection: This request improperly bundles multiple alleged alter-ego relationships into a single global proposition, the compound objection is justified

Basis for Motion: This is one of the facts that establishes being covered employer and how is being joint employer compound? It is only asking about a single fact.

RULING: DENY as to all. Overbroad and vague.

No. 2 (only as to FNTC) Admit that defendants and each of them in this action have been alter ego of one another.

Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.

Basis for Motion: RFA # 2 is only asking whether the responding party are defendants' alter ego which is a fact that establishes being covered employer.

RULING: DENY as to all. Overbroad and vague.

No. 3 and No. 4 relate to admitting (as to all defendants) to making made false testimonies in 2020 trial.

Defendant's Response: Responding Party objects to this Request for Admission on the grounds that the Court struck Plaintiffs' claims regarding allegedly false testimonies. This RFA therefore seeks the disclosure of evidence that is not relevant and is not likely to lead to the disclosure of admissible evidence because the burden, expense, or intrusiveness of that discovery clearly

outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.

Basis for Motion: This request is regarding Responding Party's credibility. Responding Party changed the request for admission on its own. Responding Parties are not free to re-write requests for admissions so that provide a different response.

RULING: DENY as to all. Lacking relevance and overbroad.

No. 5 Admit that defendants and each of them in this action have been covered employees for illegal harassment under FEHA since 2010 to now. Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.

Basis for Motion: this is not compound.

RULING: DENY as to all. Overbroad and vague.

No. 6 Admit that defendants and each of them have been covered employees for illegal discrimination and retaliation under FEHA since 2010 to now.

Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.

Basis for Motion: The request is not compound, asking for single fact related to allegations in the FAC.

RULING: DENY as to all. Overbroad and vague.

No. 7 Admit that defendants and each of them in this action have been illegally harassing plaintiff.

Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.

Basis for Motion: The request is not compound, asking for single fact related to allegations in the FAC.

RULING: DENY as to all. Overbroad and vague

No. 8 Admit that defendants and each of them in this action have been illegally discriminating and retaliating against plaintiff.

Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.

Basis for Motion: The request is not compound, asking for single fact related to allegations in the FAC.

RULING: DENY as to all. Overbroad and vague

No. 9 Admit that defendants and each of them in this action have been refusing to provide Job verification of plaintiff.

Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.

Basis for Motion: The request is not compound, asking for single fact related to allegations in the FAC.

RULING: DENY as to all. Overbroad and vague

No. 10 Admit that defendants and each of them in this action have been preventing plaintiff to get hired since at least since January of 2012.

Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.
Basis for Motion: The request is not compound, asking for single fact related to allegations in the FAC.

RULING: DENY as to all. Overbroad and vague

No. 11 Admit that defendants and each of them in this action have been subject to California employment law in the last 15 years.

Defendant's Response: Overbroad and burdensome.

Basis for Motion: is only asking to admit the defendants have been subject to California employment law in the last 15 years. Responding Party starts its response boilerplate objections. The response is evasive too. Responding party is a company and it does not have to do anything with being an officer that Responding Party has mentioned in its response and must have responded as a company. Allegations in the FAC does go back to over a decade, then 15 years is absolutely reasonable span of time.

RULING: DENY as to all. Overbroad and vague

Verification of Electronic Signatures

The validity and usage of electronic signature verification, including DocuSign, was addressed in the Court's February 2, 2026 Minute Order at the hearing for plaintiff's motion to compel further responses to plaintiff's request for production of documents, set one. The Order stated wet-ink signatures were not required at this time because electronic verifications are permissible under the Uniform Electronic Transactions Act, subject to authentication. The Court does not find any circumstances, nor any compelling argument, to alter this decision.

D. Sanctions

Sanctions are authorized against a party who unsuccessfully brings a motion to compel further directed at interrogatories, requests for production or RFAs, unless the Court finds the party made the motion "with substantial justification" or other circumstances make the sanction "unjust." (Code Civ. Proc. §§ 2030.300, subd. (d), 2031.100, subd. (d), 2031.290, subd. (d), 2023.030, subd. (a).) Sanctions are mandatory against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response unless other circumstances make the imposition of the sanction unjust. (Code Civ. Proc. § 2033.290, subd. (d).)

Because the motion is DENIED in its entirety, plaintiff is not entitled to any sanctions. As the court does not find circumstances rendering a sanction unjust and pursuant to a duly noticed request in its opposition, defendants are entitled to sanctions. Defendants request an award for attorney fees in the amount of \$3,150.00 for seven hours work billed at counsel's reasonable hourly rate of \$450.00 per hour. (Declaration of John Claassen, Esq. ¶ 11.) The court finds the time spent and hourly rate are reasonable in this jurisdiction. (Code Civ. Proc., § 2023.030, subd. (a).) Accordingly, the request for sanctions of \$3,150.00 is GRANTED. Plaintiff is ordered to pay sanctions of \$3,150.00 to Defendants thru their attorney of record, within 30- days of the service of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If contested, parties may appear to argue the tentative ruling. The Court will then take the matter under submission, and the Court will prepare the Order after hearing.

9:00 AM

Line 3

24-CIV-00269 HAMID KHAZAELI VS. DAVID A BREWER, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Plaintiff's Motion to Compel Further Responses Under C.C.P. Section 2016.090

TENTATIVE RULING:

Plaintiff's Motion to Compel Further Initial Disclosures (C.C.P. section 2016.090) is DENIED.

Initially, the Court notes that Plaintiff's original and/or amended Notice of Motion, stated that the instant matter was set before a prior assigned Judge. However, effective April 13, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable Michael L. Mau, Department 20, now located at 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the required Amended Notice "must specify" the location of the hearing].)

A. Background

The underlying action for FEHA-based discrimination and retaliation arises from plaintiff's former employment with Notify Technology Corporation from 2006 to 2012 as enterprise sales manager. (FAC ¶9.) The named defendants include three individual non-employers— Michael Ballard, Siu Po Lee and Sandra Basel — who testified for the defense at a 2020 in one of plaintiff's former lawsuits regarding his employment tenure. (FAC ¶ 15.) Plaintiff seeks damages in excess of \$60,000,000. (FAC ¶31.) Because this matter has an extensive procedural history of which the parties are well-versed the Court does not repeat it here.

The instant motion was initially set for hearing on March 9, 2026 and later continued by a prior assigned department to the latest date of October 19, 2026, but on May 22, 2026, this Court *sua sponte* advanced the hearing date. The Court notes that when this case was assigned to Dept. 20 which assignment was effective on April 13, 2026, there were approximately twenty-five (25) discovery and other motions already filed, and that plaintiff himself asked this Court to advance motions that were already fully briefed, including this same motion, to an earlier date.

B. Legal Standards

Discovery is permitted as to any nonprivileged matter relevant to the subject matter involved in the pending action, subject to proportionality limits. (Code Civ. Proc., §§ 2031.010, 2017.020.)

Trial courts possess broad discretion to manage discovery and to limit discovery that is unreasonably cumulative, overbroad, or disproportionate. (*Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 380; *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.)